SmarterLiving

Section A - YOUR HOME PROTECTION PLAN AGREEMENT

Your Plan Summary

Agreement Number:	ZZZ-10344048442350012
Agreement Holding Period:	30 Days
Agreement Term:	01/17/2026 - 01/16/2027
Start Date:	01/16/2026
Bonus Months:	1
End Date with Bonus Months:	02/16/2027
Property Covered:	[ADDRESS]
Property Type:	SINGLE-FAMILY UNDER 5,000 SQ. FT
Agreement Type:	MULTI YEAR AGREEMENT
Agreement Price:	[$***.00]*
Purchase Date:	05/17/2024
Standard Trade Service Fee:	$**.00
Pro-Series Trade Service Fee:	$**.00
Customer Contact:	BRAD GEDDES
Phone Number:	519-200-6058
E-Mail Address:	BRADFORD.GEDDES@GMAIL.COM

Please read this Home Protection Plan Agreement carefully as it explains what your Plan covers and our obligations, how to file a Service Request, and your rights and obligations. Please note that unless an item, system, or unit (including parts and components) of a Covered Item is specified in the Plan Summary as covered, and as further described in this Agreement, it is not covered. Please refer to the exclusions, restrictions, and limitations in this Agreement for more detail. You can also access this Agreement at any time by visiting mysmarterliving.com.

This Agreement is a service contract and not a contract of insurance.

Terms & Definitions

1. "Agreement" and “Plan” refers to this Home Protection Plan Agreement.
2. “Agreement Price" refers to the purchase price of this Plan.
3. "Agreement Term" refers to the period of time between the Purchase Date and the end date without bonus months, as set forth in Your Plan Summary.
4. "Book Value" refers to the fair market value of the Covered Item at the time of claim submission.
5. "Covered Item(s)" are the systems, appliances, and/or optional add-ons stated in Your Plan Summary, and are subject to the limitations, exclusions, and provisions set forth in this Agreement.
6. “Effective Date" refers to the date upon which coverage under this Agreement begins, determined by taking the Purchase Date and adding to it the number of days in the Agreement holding period.
7. "Malfunction" and "Failure" both refer to a breakdown of a mechanical component or part of a Covered Item due to Normal Wear and Tear.
8. "Normal Wear and Tear" refers to a Malfunction or Failure of a Covered Item that is the result of normal, ordinary use, following the guidelines of the manufacturer.
9. "Plan Summary" refers to the high-level overview of this Agreement mailed and/or e-mailed to You, featuring Your Agreement number, Agreement holding period, Agreement Term, bonus months, payment type, Agreement Price, Purchase Date, Service Trade Fee ("Deductible"), property covered, property type, residence, Your contact information, and Your Covered Items.
10. "Purchase Date" refers to the date that your first payment toward the Agreement Price Is received by Zucora.
11. "Service Contractor" refers to a technician selected and approved by Zucora in the trade applicable to Your request.
12. "Service Trade Fee" or "Deductible" refers to the payment that must be made to Zucora before any Service Contractor is dispatched as set forth in Your Plan Summary.
13. "We", "Us", “Our”, "Zucora", and “SmarterLiving” are references to Zucora Inc.
14. "You" and "Your" are references to the person who has entered into and/or been provided an Agreement with Zucora and/or any permitted assignees or transferees of this Agreement.

Section A – SERVICE AGREEMENT

A1. **Services:** During the coverage period, We agree to provide services ("Services") that may include providing an authorized Service Contractor to repair major home appliances or repair home systems identified as Covered Items in your Plan Summary in accordance with the Terms and Conditions of this Agreement. This Agreement is intended to provide protection against the cost of repairing and in some instances replacing, certain types of wear and tear and mechanical breakdowns for specific Covered Items in your home. Various provisions in this Agreement limit and restrict coverage. Certain items and events are not covered by this Agreement. **Please read this Agreement carefully** to understand and determine your rights, obligations, and what is and is not covered.

A2. **Location:** We will provide service for Covered Items that,

a) are located in a Zucora service area where We are able to provide such services ("Service Location"),

b) are installed and located within the perimeter of the structural walls of the main foundation of the covered residential home property not exceeding 465 m^2 (5,000 ft^2) or within an attached or detached fully enclosed garage capable of parking one or more motor vehicles,

c) if explicitly included in Your Agreement, and manufactured for outside use and installed or located in a structure which entirely protects them from the elements, the following may be considered Covered Items: Air Conditioning, Heating, Water Heater, Well Pump, Sump Pump, Septic System Pumping, and/or Pool and Spa,

d) are installed in a covered property that is part of a multiple unit property, condominium or townhouse property as it has been represented to Zucora,

e) are installed in owned or rented residential properties and not commercial properties or residences used as businesses including daycares, group homes, nursing homes, etc.,

f) were properly installed and are in good and safe working condition as of the Effective Date of this Agreement,

g) have become damaged or inoperable due to normal usage after the Effective Date of this Agreement,

h) are reported as requiring service during the term of this Agreement.

A3. **Prior Defects:** This Agreement **does not cover** defects, damage or service requirements ("Prior Issues") known prior to the Effective Date of this Agreement. Prior Issues are excluded from coverage until proof of repair(s) has been received by Us and determined by Us to be satisfactory. We provide service or repair for unknown conditions if the condition would not have been detectable by You through visual inspection and simple mechanical test.

Section B - GENERAL TERMS

B1. **Agreement Term:** Your Agreement Term is set forth in Your Plan Summary.

B2. **Payments:** For annual and multi-year Agreements, Your entire Agreement Price is due on or before the Purchase Date, as found in the Plan Summary, unless you have been offered a split payment plan. For monthly Agreements, Your Agreement Price is due in monthly installments on or before the day of the Purchase Date as found in the Plan Summary. A Trade Service Fee is due and payable upon a request for service as described in "Section C – Requesting Service". All payments must be made by credit card. Additional costs may apply in accordance with other sections of this Agreement. All limits and caps set forth below will resent every 365 days of the Agreement Term from the Effective date of this Agreement.

B3. **Non-Payment of Fees:** Failure to pay any fees that are due and payable will result in suspension of Coverage until such time as the required fee is paid. At that time, Coverage will be reinstated, but the Agreement period will not be extended and normal billing shall resume.

B4. **New Customer**: A New Customer Agreement Term begins and ends according to the Agreement Term and any Bonus Months listed in Your Plan Summary, provided payments are received by Us.

B5. **Renewal Customer**: A Renewal Customer is an existing Zucora customer whose Agreement term is NOT "Monthly Recurring" and whose Agreement Zucora has offered to renew. Renewal Customer Agreement Term begins upon expiration of the previous Agreement Term and any Bonus Months, provided the Agreement Price is not in arrears upon expiration of the previous Agreement Term, and continues for the renewal term. (For more information on Agreement renewal, see "Section I3 – Agreement Renewal")

B6. **Renewal Adjustments:** Renewal of an annual or multi-year Agreement could result in changes in rates or terms of this Agreement and We agree to notify You within sixty (60) days prior to the expiration of this Agreement of any adjustments to plan fees, service fees or any other revisions to the terms of this Agreement. A "Monthly Recurring" Agreement Price may be adjusted from time to time and We agree to notify You at least sixty (60) days prior to such adjustment in the Agreement Price.

B7. **Transfer of Ownership:** If the covered property changes ownership during the Agreement Term, You are required to contact Us by phone to assign coverage the new property owner.

B8. **Transfer to New Property:** If coverage is transferred to a different property during the Agreement Term, You must contact Us by phone to assign coverage to the different property and You may be charged a fee in connection with such transfer.

B9. **Coverage Limitation:** Coverage provided under this Agreement is for no more than one (1) of each of the appliance, system and/or optional add-ons listed in Your Plan Summary, unless additional fees are paid. If no additional fees are paid, coverage of more than one of each appliance, system and/or optional add-on is at our sole discretion.

B6. **Termination:** These following conditions apply to any termination of your Selected Plan:

a) We may not terminate this Agreement, except for any of the following reasons:

i. if you do not pay a fee or charge under the terms of this Agreement;
ii. if you engage in fraud or misrepresentation of facts material to issuance and operation of this Agreement;
iii. upon our mutual agreement with you to terminate this Agreement (subject to any Cancellation Charges);
iv. if you harm or threaten the safety or well-being of any employee of Zucora, a Zucora service provider or any property of Zucora or of the service provider.

b) You may terminate this Agreement at any time within ten (10) days of the Effective Date of the Initial Service Period and receive a full refund of any amounts paid, provided that no Service Requests have been submitted during the Initial Service Period. In the event you wish to terminate this Agreement on a date ("Termination Date") prior to the expiration of a current Service Period; you agree and shall be responsible for payment of the lesser of a) the total amounts remaining payable for the Service Period; or b) costs related to any Service Requests processed on your behalf during the current

Service Period, up to and including the Termination Date. You agree that we shall not be obligated to accept any Service Requests or to provide any further services upon termination of this Agreement.

c) To terminate this Agreement, you must contact us by calling 866.667.6695

Section C - REQUESTING SERVICE

C1. **Service Requests:** We are available to accept Your service requests 24 hours a day, 365 days a year and We may be contacted in the following manner:

b) By online Service Request at: Service.mysmarterliving.com

c) By Email to: Service@mysmarterliving.com

d) By Telephone at: 866.667.6695

C2. **Notification:** We must be notified as soon as the Malfunction is discovered and prior to expiration of the Agreement Term and any Bonus Months.

C3. **Response:** Under normal circumstances, either Zucora, or an authorized Zucora Service Technician will contact You within forty-eight (48) business hours to schedule a mutually convenient appointment, during normal business hours, to perform non-emergency service. We will not provide service until all past due Trade Service Fees and Agreement Payments have been paid.

C4. **Expediting Normal Response:** We will accept your request to expedite non-emergency service only if an authorized Zucora Service Technician is available to provide the service requested. If the Service Technician agrees to expedite the scheduling of a non-emergency service, You will be responsible for any additional fees, including overtime compensation.

C5. **Emergency Response:** In an emergency situation, we will make reasonable efforts to expedite service within twenty-four (24) hours. An emergency situation is defined as:

a) A plumbing failure that causes interior flooding;

b) A complete loss of heat or air conditioning in extreme temperature conditions;

c) A system failure that causes ongoing damage to your home;

d) A condition that immediately endangers health and safety as a result of the malfunctioning of a Covered Item.

C6. **Authorized Service:** We retain the sole right to select and arrange for an authorized Zucora Service Technician to perform the work to be provided by this Agreement. Only work authorized and arranged by Us is covered by this Agreement unless we agree otherwise. We will not reimburse you for service performed by You or Your own contractor without prior authorization from Zucora.

C7. **Trade Service Fee:** For each separate Service Request with respect to one or more Covered Items in an individual product group (Appliances, Home Systems), when a Service Technician is required to be dispatched, you are responsible for payment of the Trade Service Fee as set out in the Plan Summary (exlusive of any sales taxes) at the time of placing the Service Request. The Trade Service Fee is due and payable to Zucora for each Service Request, under the following circumstances:

a) when you cancel a Service Request after the Service Technician is enroute to your home;

b) when you deny the Service Technician access as may be required to perform a diagnosis or to undertake resolution of the Service Request;

c) when the Service Technician's diagnosis results in a partial or complete exclusion of coverage for the Service Request; or

d) Zucora approves your request for a second opinion and the second opinion is different than the original.

C8. **Photographs:** To assist Us with faster resolution of Your Service Request, You may be requested to provide Us with photos of the damaged component(s) related to the Covered Item.

C9. **Guaranteed Repairs:** Repairs provided under a Service Request are guaranteed by Zucora for thirty (30) days. Should failure occur on the Covered Item within thirty (30) days of service another Trade Service Fee will not be charged for the same issue.

C10. **Second Opinion:** We reserve the right to obtain a second opinion at Our expense. In the event that We advise You that the malfunction is not covered, You have the right to request a second opinion from another Zucora Service Technician within seven (7) days from the time Zucora advises You the malfunction is not covered by Your Plan. In the event the outcome of the second opinion is different than the first opinion, You will not be responsible or owe payment for the additional Trade Service Fee. However, if You request a second opinion, and the outcome of the second opinion is the same as the first opinion, You will be responsible for payment of the additional Trade Service Fee.

C11. **Remote Service:** Although Zucora has created an extensive, reputable and unbiased network of Service Technicians who provide service to Our customers, Our network is not all-inclusive for every trade, in every location. For that reason, We may authorize or require You to contact an independent Service Technician (outside of the Zucora network) to obtain service. If so, we will provide You with the requirements and/or qualifications of the Service Technician required to resolve the Service Request. We will authorize payment or reimbursement for approved service and/or repairs, based on our negotiated rates with Our Service Technicians (in the Zucora network) and Our various suppliers.

C12. **Access:** It is Your responsibility to ensure the area near the Covered Item is free and clear of any non-related items for the Service Technician to perform the requested diagnosis or requested service. In the event the area is not accessible the Service Technician will return at a later date and You will be responsible for an additional Trade Service Fee.

C13. **Gift Cards:** Where a Covered Item may require replacement, Zucora reserves the right to arrange for the purchase and delivery of a replacement item, or alternatively, at Zucora's sole discretion, to issue a Gift Card to You as compensation for the replacement of the Covered Item in an amount that is determined by Us. The Gift Card may be issued for a retailer that is capable of providing a replacement item similar to the Covered Item being replaced.

Section D – MAJOR APPLIANCES COVERAGE

D1. Covered Major Appliance Items coverage and exclusions to coverage apply only if Your Plan includes Appliances Coverage or Whole Home Coverage for the following:

KITCHEN APPLIANCES

- Kitchen Refrigerator (single compressor)
- Oven / Range / Cooktop
- Dishwasher
- Built-in Microwave
- Range Hoods
- Freezers
- In-sink Garbage Disposal

LAUNDRY APPLIANCES

- Clothes Washer
- Clothes Dryers
- Washer & Dryer Pairs
- Laundry Pedestals

Please Note: Professional series, professional grade, luxury, high-end, premium or like appliances are excluded from coverage unless separate coverage option for these types of appliances has been purchased separately and included with Your Plan. See Section G8 for applicable Covered Item dollar limits.

D2. Kitchen Refrigerator

COVERED: Mechanical components and parts that affect the operation of the Kitchen Refrigerator (must be located in the Kitchen), including parts of freezer and ice makers that are integral part of the refrigerator.

NOT COVERED: Racks; Shelves; Handles; Refrigerant; Ice Crushers; Water Lines; Water/ice dispensers and associated equipment; Line restrictions (Interior thermal shells; Wine coolers or mini refrigerators; Doors, seals and gaskets; Hinges; Sealed systems; Clogged drains and lines; Refrigerant recapture/recovery/recharge, Freon or coolant.

D3. Oven/Range/Cooktop

COVERED: Mechanical components and parts that affect the operation of an Oven, Range or Cooktop.

NOT COVERED: Racks; Handles; Knobs; Doors and door seals; Hinges; Rotisseries; Meat probe assemblies; Clocks (unless affecting the cooking functionality of the unit); Sensi-heat burners will only be replaced with standard burners. For combo units, components and parts that are shared by each appliance.

D4. Dishwasher

COVERED: Mechanical components and parts that affect the operation of the Dishwasher.

NOT COVERED: Racks, Baskets, Rollers; Hinges; Handles; Doors and door gaskets; Soap Dispensers.

D5. Built-In Microwave

COVERED: Mechanical components and parts that affect the operation of the Built-In Microwave.

NOT COVERED: Microwave drawers; Doors; Hinges; Handles; Interior linings; Trays; Clocks; Shelves; Portable or countertop units; Arching; Meat probe assemblies; Rotisseries. For combo units, components and parts that are shared by each appliance.

D6. Range Hoods

COVERED: Motors, Switches; Controls; Bearings that affect the operation of the Range Hood.

NOT COVERED: Fans; Blades; Belts; Shutters.

D7. Freezers

COVERED: Mechanical components and parts that affect the operation of the Freezer.

NOT COVERED: Racks; Shelves; Handles; Refrigerant; Water Lines; Line restrictions; Interior thermal shells; Doors, seals and gaskets; Hinges; Sealed systems; Clogged drains and lines; Refrigerant recapture/recovery/recharge, Freon or coolant.

D8. In-Sink Garbage Disposal

COVERED: Mechanical components and parts that affect the operation of the In-Sink Garbage Disposal.

NOT COVERED: Malfunctions caused by bones, glass or foreign objects other than food.

D9. Clothes Washer

COVERED: Mechanical components and parts that affect the operation of the Clothes Washer.

NOT COVERED: Plastic tubs; Soap dispensers; Knobs and dials; Door seals; Hinges; Hoses; Venting components; Leveling and balancing; Timers (unless they directly affect the functionality of the Clothes Washer).

D10. Clothes Dryer

COVERED: Mechanical components and parts that affect the operation of the Clothes Dryer.

NOT COVERED: Lint screens, Knobs and dials; Doors and seals; Hoses; Hinges; Leveling and balancing; Venting components; Timers (unless they directly affect the functionality of the Clothes Dryer).

D11. Washer and Dryer Pairs

COVERED: Mechanical components and parts that affect the operation of the Clothes Washer and Dryer Pair.

NOT COVERED: Plastic tubs; Soap dispensers; Lint Screens, Knobs and dials; Door seals; Hinges; Hoses, Leveling and balancing; Venting components; Timers (unless they directly affect the functionality of the item).

D12. Laundry Pedestals

COVERED: Mechanical components and parts that affect the operation of the Laundry Pedestal.

NOT COVERED: Scratches, Dents, Leveling and balancing; Rollers.

Section E – HOME SYSTEMS COVERAGE

E1. Covered Home System Items coverage and exclusions to coverage apply only if Your Plan includes Home Systems Coverage or Whole Home Coverage for the following:

Heating System	**Electrical**
Air Conditioning	**Ductwork**
Plumbing	**Water Heater**

See Section G8 for applicable Covered Item dollar limits.

E2. HEATING SYSTEM

COVERED: Mechanical components and parts necessary for the operation of Primary gas or electric heater, Heat Pump. NOTE: Coverage available on Heating Systems that are the main source of heat to the home, with capacity not exceeding five (5) tons per unit. For units below 13 SEER, and for when We are unable to facilitate repair/replacement at the current SEER rating, repair/replacement will be performed with 13 SEER equipment or higher.

NOT COVERED: All components and parts relating to geothermal and/or water source heat pumps/coils; Hydronic, steam or Apollo systems; Heat lamps; Filters; Radiant heating; Radiators; Baseboard casings; Electronic air cleaners; Humidifiers; Furnace vents & flues; Asbestos-covered ductwork; Wood or pellet Stoves (even if only source of heating); Fireplaces (of any kind) and key valves; Inserts; Insulation; Dampers; Collapsed or Crushed Ductwork; Improperly sized systems or systems with mismatched capacity per Manufacturer's Specifications; Zone control systems; Zone valves; Solar space heating & cooling systems; Outside or underground piping, well pumps and components for geothermal and/or water source heat pumps; Drilling of wells; Freestanding units; Maintenance or cleaning, Noises.

E3. AIR CONDITIONING

COVERED: Maximum of two (2) electric central air conditioning units including condensers; or two (2) electric wall air conditioners; or two (2) electric window air conditioners, or two (2) ductless mini splits, up toa five (5) ton capacity; Thermostats. For units below 13 SEER, and for when We are unable to facilitate repair/replacement at the current SEER rating, repair/replacement will be performed with SEER equipment or higher.

NOT COVERED: Leaks of any kind; Short-to-ground compressor malfunctions/shorted or grounded compressors; Gas AC systems; Condenser casings; Electronic air cleaners; Water towers; Water trays or drip pans; Humidifiers; Chillers; Pre-coolers; Evaporative coolers; All exterior condensing, cooling and pump pads; Roof mounts, Jacks, stands or supports; Condensate pumps; Drain line stoppages; Geothermal piping and wells; Electrical supply; Coils of any kind; Zoned systems; Improperly sized systems or systems with mismatched capacity per manufacturer's specifications, Inaccessible or non-visible coil lines, Freon recapture/recovery or recharge, Noises.

E4. PLUMBING

COVERED: Drain line stoppages, Leaks and breaks of water, drain or waste lines; Toilet tanks, bowls, mechanisms, and wax ring seals; Shower, tub, diverter, rinse, shut-off and gate valves; Built-in bathtub whirlpool motor and pump assemblies; Instant hot water dispenser, Stoppages/clogs in drain and sewer lines up to 30m (100 feet) from access point. (Mainline stoppages are only covered if there is an accessible ground level cleanout and the mainline has not collapsed.)

NOT COVERED: Plumbing fixtures including faucets, bathtub, shower base pans & enclosures; Toilet lids & seats; Sprinkler or solar systems, stop & waste valves; Water heater vents & flues; Vent pipes; Septic tank; Stoppages that cannot be cleared with cable/snake, hydro jetting; camera inspection; Stoppages due to roots; Water heater heat pump attachments; Sewage ejector pump; Internal and external hose bibs; Expansion tanks; Energy conservation units; Noises; Electrolysis; Water softener; Whirlpool jets; Water filters; Water purification systems; Bidets; Jet Pumps; Conditions caused by chemical, calcium, or sediment Build-up; Caulking, grouting; Inadequate or excessive water pressure; Flow restrictions in rresh water lines caused by rust, corrosion, or chemical deposits; Basket strainers, Pop-up assemblies; Stoppers; Diesel or oil fired water heaters; Heat pump/ water heater combination units; Saunas/steam rooms; Water Heater drip pans, Ice maker water lines, Main water shut-off valve.

E5. ELECTRICAL SYSTEM

COVERED: Mechanical components and parts including wiring; Panels attached to the home; Plugs, fuses, junction boxes, GIFI circuit breakers; Conduit; Ceiling and exhaust fans, Central vacuum main unit.

NOT COVERED: Auxiliary or subpanels; Light fixtures and wireless/remote switches or controls including those on ceiling fans; Attic exhaust fans; Bulbs, ballasts, vents; Removable attachments; Accessories or hoses; Plumbing/piping within home related to central vacuum system; Telephone wiring, D.C. wiring or components; Heat lamps; Intercoms; Alarms; Low-voltage relay systems; Electronic or computerized energy management or lighting and appliance management systems; Door bell and related wiring, chimes; Smoke detectors, CO detectors, Rerunning of wiring for broken/severed wires; Wire tracing; Circuit overload; Upgrading existing outlets to GFI; Garage door mechanisms openers or remotes.

E6. DUCTWORK

COVERED: Leaks or breaks in ductwork associated with Heating System and/or Air Conditioning; Registers and grills.

NOT COVERED: Insulation; Breeching; Separation due to lack of support; Damper motors; Air cleaner cabinets.

E7. WATER HEATER

COVERED: Mechanical components and parts, including circulating pumps, up to 75 gallons; Tankless systems.

NOT COVERED: Insulation blankets; Sediment build-up; Main, holding, fuel, thermal expansion and/or storage tanks; Low boy and/or squat units; Drain pans and lines.

Section F - WHOLE HOME AND ADDITIONAL OPTIONAL ITEMS

F1. Covered Whole Home coverage and exclusions to coverage apply only if Your Plan includes both Major Appliances and Home Systems Coverage and includes all items listed in Sections D and F.

See Section G8 for applicable Covered Item dollar limits.

F2. ADDITIONAL OPTIONAL ITEMS

Coverage for Items listed in this Section are available at additional cost. See Section G8 for applicable Covered Item dollar limits.

F3. POOL AND/OR SPA EQUIPMENT

COVERED: Both in-ground pool and built-in spa equipment are covered if they share components and parts, otherwise only the individual pool or the built-in spa is covered unless coverage for each is individually purchased. Coverage applies to above ground, accessible mechanical components and parts of the heating, pumping and filtration system as follows: Heater pump; Motor; Above ground plumbing and wiring.

NOT COVERED: Portable or above ground pools/spas; Control panels and electronic boards; Liners; Structural defects; Jets; Fountains, waterfalls and associated systems; Pool cover and related equipment; Fill line; Cleaning equipment such as pool sweeps, pop-up heads, skimmers, chlorinators, and ionizers; Fuel storage tanks; Disposable filtration mediums; Cracked or corroded casings; Grids, Cartridges; Gaskets; Blowers; Timers; Relays and switches; Heat pump; Salt water generators and components.

F4. SEPTIC SYSTEM PUMPING

COVERED: Main line stoppages/clogs with existing and accessible cleanout.

NOT COVERED: Sewer hook-ups; Chemical treatments; Tanks; Leach lines; Cesspools; Mechanical pumps/systems. Zucora is not responsible for environmental impact.

F5. WELL PUMP

COVERED: Mechanical components and parts of well pump used for main dwelling only.

NOT COVERD: Holding or storage tanks; Digging; Locating and/or retrieving pump; Redrilling of wells; Well casings; Pressure tanks; switches and gauges; Drop pipes; Plumbing or electrical lines connected to the main dwelling; Booster pumps; Parts and components for geothermal and/or water source heat pumps.

F5. Sump Pump

COVERED: Permanently installed sump pump for groundwater.

NOT COVERED: Sewage ejector, portable, and grinder pumps; Backflow preventers; Piping modifications.

F6. Central Vacuum

COVERED: All mechanical components and parts.

NOT COVERED: Ductwork; Hoses; Blockages; Accessories.

F7. Stand Alone Freezer

COVERED: All mechanical components and parts.

NOT COVERED: Ice makers/crushers and their water lines; Beverage dispensers and associated equipment; Internal shell; Racks; Shelves; Knobs, caps, and dials; Doors; Door seals, gaskets, hinges, and handles; Condensation pans; Clogged drains ana lines; Grates; Refrigerant; Sealed systems.

F8. Second Refrigerator

See Section D2.

F9. Limited Roof Leak

COVERED: this only applies to roof leak patching over the occupied living area of single family homes.

NOT COVERED: Patios; Metal roofs; Shingles· Cracked and/or missing material; Tiles; Tar and gravel; Flat or built-up roofs; Structural damage; Gutters (unless additionally purchased); Downspouts; Skylights; Flashing,; Satellite, antennae, and chimney components. This Agreement does not cover repairs requiring partial or complete replacement of the roof.

F10. Water Softener

COVERED: This Agreement covers all modules, components, and parts necessary to functionality, including valves.

NOT COVERED; Mineral tank; Brine tank; Recharge or regeneration.

F11. Re-Key

COVERED: For the applicable Per Claim Fee, We will provide re-key services on up to one (1) keyhole (including deadbolts), and provide one (1) copy of the key.

Section G - EXCLUSIONS - WHAT THIS AGREEMENT DOES NOT COVER

G1. Exclusions. Your Agreement does not cover the following:

a) Routine Maintenance. You are responsible for providing maintenance and cleaning of Covered Items as specified by the manufacturer or as generally required for proper Covered Item operation;

b) A Malfunction of a Covered Item partially or completely due to: lack of, or excess of, capacity in the Covered Item; insufficient maintenance of the Covered Item; rust or corrosion of the Covered Item where it is a contributing cause of the Malfunction; improper installation, repair, matching, sizing, or modification of the Covered Item whether performed by You or a third party;

c) We do not cover Appliances or Systems classified by the manufacturer as Commercial, Commercial Equipment modified for domestic use, or Covered Items located in family dwellings used for commercial purposes;

d) Professional series, professional grade, luxury, high-end, premium, or like appliances, including but not limited to brand names such as Gaggenau1 La Cornue, Lacanche, THG Paris Bertazzoni, Officine Gullo, Molteni, True, Dacor, Aga, KitchenAid, Electrolux, Asko, Fisher & Paykel, Five Star, GE Monogram, GE Café, Marvel, Scotsman, U-line, Alfresco, Miele, American Range, Best, Blomberg, BlueStar, Sub-Zero, Viking, Capital, Faber, Fulgor Milano, Jenn-Air, Heartland, Hestan, Liebherr, Wolf, Lynx, Smeg, Zephyr, Thermador, live, Thor Kitchen, Bosch, Verona, ZLlne, Chambers, Abbaka, and Franke (If you would like to add coverage on these types of appliances, please inquire with a Zucora sales representative);

e) Flues, vents, chimneys, and exhaust lines associated with any Covered Item;

f) Electronic, computerized, "smart," and/or Internet-enabled components and parts;

g) Remote receiving and/or transmitting devices, and associated equipment;

h) Filters associated with any Covered Item;

i) Lighting, including but not limited to fixtures, lights, lamps, and bulbs;

j) Radon and other leak detection monitoring systems and fire sprinkler systems;

k) Solar systems and appliances, including any solar components and/or parts of systems and appliances;

l) Repair or remediation of cosmetic defects;

m) Repair, replacement, installation, or modification of any Covered Item, or part thereof, that has been determined to be defective under the *Canada Consumer Product Safety Act* by Health Canada or other similar regulatory entity, or for which a manufacturer or distributor has issued a warning, recall, or determination of defect;

n) Covered Item diagnosis, testing, location, modification, upgrade, repair, or replacement required to comply with any federal, provincial, or local laws, regulations or ordinances, utility regulations, or building or zoning code requirements;

o) Disposal of any appliance, system, or components;

p) Installation of parts of or the entirety of systems, appliances, and/or optional add-ons;

q) Cranes or other specialty vehicles or equipment required to install, remove, or access Covered Items in order to provide services under Your Agreement;

r) Costs or expenses associated with refrigerant recovery, recycling, reclaiming, recapture, conversion, and/or disposal (for coverage of R-410A refrigerant itself, see subsection H1 c);

s) Noise or odours;

t) Glass parts and components of Covered Items;

u) Unless stated otherwise in this Agreement, valves of any kind and leaks, leak detection, and leak searching of any kind;

v) Thermometers.

G2. **Records:** We have the right to request purchase records, repair/installation records, maintenance records, certifications, and home inspection reports, among other pieces of evidence, for any reason and at any time, including but not limited to reviewing any claims, or reviewing Our decision to deny any claims. Should You not provide Us with the aforementioned pieces of evidence, We reserve the right to limit or deny Your repair, replacement, and/or cash in lieu of repair or replacement.

All Covered Items must be in place and in proper working order on the Effective Date of this Agreement. This Agreement does not cover any known or unknown preexisting conditions.

Except as otherwise specified in Your Agreement, Zucora is not responsible nor liable for performing service and/or paying remediation costs for systems, appliances, and/or add-ons that involve hazardous or toxic materials or other waste, including but not limited to: mould, lead paint, asbestos, mildew, bio-organic growth, rot, fungus, past damage of any nature or kind.

G3. **Construction:** Except as otherwise specified in Your Agreement, Zucora is not responsible nor liable for:

a) Costs of construction, carpentry, and/or other modifications necessary to remove, relocate, or install a Covered Item or part thereof; and

b) Restoration of any wall or floor coverings, cabinets, counter tops, tiles, and/or paint.

G4. **Access:** We will not provide or secure access to Covered Items through walls, ceilings, floors, concrete encasings, and/or any other sort of obstruction (i.e., bult-in appliances, cabinets, and/or coverings), and will not return or close access openings to any sort of condition.

G5. **Testing:** We are not responsible nor liable for the cost or conduct of testing required by statute or regulation associated with the repair or replacement of Covered Items.

G6. **Mould, Mildew, Odour, Rot or Fungus:** We are not, under any circumstances, responsible for the diagnosis, repair, removal or remediation of Mould, Mildew, Odour, Rot or Fungus, or any damages resulting from or related to Mould, Mildew, Odour, Rot or Fungus, even when caused by or related to the malfunction, repair or replacement of a Covered Item.

G7. **Code Upgrades; Toxic Materials; Disposal:** If upgrades are required to the Covered Items, We cannot perform service until corrective work has been completed. If additional costs are incurred in order to comply with health, safety or government regulations, We will not be responsible for any additional expense, or any costs relating to permits in respect of the Covered items. We will not perform services involving hazardous or toxic materials including, but not limited to, Asbestos, Mold, Lead Paint, or Sanitation of Sewage Spills, nor will We pay costs related to recapture and/or disposal of Refrigerator/Freezer Refrigerants, Contaminants, Hazardous or Toxic Materials with respect to any Covered Items.

G8. **Repair; Replacement; Upgrading:** We are not responsible for delay in obtaining parts or replacement equipment. We reserve the right to repair and/or replace components of Covered Items with non-original manufacturer's parts, including rebuilt or refurbished parts. We will not upgrade any covered item, except at our sole discretion. Our responsibility is limited to providing replacement of Covered Items that are comparable in features, capacity and efficiency, but not for matching in dimensions, color, or brand. We are not responsible for the cost of installation, construction, carpentry, or other modifications made necessary by existing or installing different equipment. We reserve the right to provide compensation in lieu of repair or replacement in the amount of our actual cost. Payment will be provided based on our negotiated rates with our Service Technicians and suppliers, which may be less than retail. We are not responsible for work performed once You accept compensation in lieu of service.

G9. **Incompatibility:** We are not responsible for upgrades, components, parts, or equipment required due to the incompatibility of the existing equipment with a replacement Covered Item, or component, or part thereof, or with any new type of chemical or material used to run the replacement equipment; including but not limited to, differences in technology, refrigerant requirements, or efficiency as mandated by Federal, Provincial, or Municipal Governments (except as noted in Central Air Conditioning).

G11. **Other Causes:** We are not responsible nor liable for Covered Item repairs or replacements when a Malfunction is due to:

a) Misuse, abuse, or mistreatment, including but not limited to removal of parts or damage by people, pests, or pets;

b) Accidents, fire, freezing, subsidence, water damage, electrical failure or surge, or excessive or inadequate water pressure;

c) Lightning, mud, roots, earthquake, soil movement, storms, or other acts of God, acts of war, or terrorism;

d) A manufacturer's improper design, materials, or formulations (design defects); a defective manufacturing or assembling process, construction, or production (manufacturing defects); defects in marketing; or other manufacturing defects (products liability).

Section H - LIMITS OF LIABILITY – FINANCIAL LIMITATIONS OF THIS AGREEMENT

H1. **LIMITS OF LIABILITY**: The following Covered Item dollar limits are reset every 365 days during the Agreement Term from the Effective Date of this Agreement;

a) Diagnosis and repair or replacement of all Covered Items are limited to two-thousand dollars ($2,000) per Covered Item, except if less as follows:

b) Diagnosis and repair or replacement is limited to five hundred dollars ($500) for the Covered Items identified in Sections E4, E5, and G., and up to two-hundred fifty dollars ($250) for diagnosis, repair or replacement of any Covered Item within 90 days of the Effective Date;

c) Coverage for R-410A refrigerant itself is limited to $10 per pound;

d) Zucora will cover up to the Covered Item's Book Value.

H2. **Violations:** We are not liable for any violations caused by You or by third parties of any provincial or local laws, rules, regulations, and/or guidelines relating to Covered Items, and will not perform repairs or replacements that will or may violate any current provincial, or local laws, rules, regulations, and/or

guidelines.

H3. **Consequential Damages:** We are not responsible nor liable for special, secondary, incidental, indirect, consequential, exemplary, and/or other related damage resulting from the Malfunction of any Covered Item, or Zucora's or a Service Contractor's neglect or delay in providing or failing to provide repair or replacement of such Covered Item.

H4. **Service Delays:** We are not responsible nor liable for any delay in service or failure to provide service caused by conditions beyond Zucora's control.

H5. **Shared Systems and Appliances:** Except as otherwise provided herein, systems and appliances shared by separate residential properties are not covered. If Your Agreement is for a duplex, triplex, or fourplex residential property, then all units within the residential property must be covered by an appropriate Agreement for coverage to apply to shared systems and appliances.

H6. **Multi-Units:** If Your Agreement is for a multifamily and/or multi-unit residential property other than those specified in F.12 above, then only items contained within the confines of each individual residential property are covered. Shared systems and appliances are not covered, unless all families and/or units in the residential property have coverage for the claimed Covered Item.

Section I – OTHER TERMS

I1. **Entire Agreement.** This Agreement, these Terms and Conditions, as amended from time to time, will constitute the entire Agreement between You and Zucora. There are no representations, warranties, terms, conditions, undertakings or collateral agreements, express, implied or statutory, between the parties other than as expressly set out in this Agreement (not applicable in Québec). We expressly disclaim any and all liability, including damages, in relation to the provision of the services. In addition, We do not represent or warrant that applicable call centres, websites or online resources will be available and meet Your requirements, that access will be uninterrupted, that there will be no delays, difficulties in use, defects, incompatibility, failures, errors, omissions or loss of transmitted information, that no viruses or other destructive code will be transmitted or that no damage will occur to Your computer system. You have sole responsibility for Your data and/or equipment protection and backup and for taking reasonable and appropriate precautions.

I2. **Changes to this Agreement.** We reserve the right to modify the Terms and Conditions of this Agreement in accordance with applicable laws, any benefits included in this Agreement, or any pricing associated with any Plan. We reserve the right to subcontract any of the services We provide to a third-party. This Agreement, as may be amended from time to time, and any supporting documentation constitute Our entire Agreement with you. If there is any inconsistency between the supporting documentation and these Terms and Conditions, these Terms and Conditions will prevail.

I3. **Agreement Renewal:** We may, at our sole discretion, elect to renew this Agreement. In the event we elect to renew your Agreement, You will be notified of the terms of Your renewal Agreement within 60 days prior to expiration of Your Agreement. Unless You decline the offer to renew Your Agreement prior to or within a reasonable amount of time after the expiration of Your prior Agreement, Your Agreement will be automatically renewed and You will be charged an applicable Agreement Price. This Section H3. does not apply if Your Agreement Term is "Monthly Recurring."

I4. **Agreement Cancelation:**

a) Your Right to Cancel and How Refunds Will Be Calculated: You may cancel this Agreement for any reason at any time. If You cancel this Agreement within the first 30 days from the Effective Date of this Agreement, We will refund to You the full Agreement Price, less a cancellation fee of 5% of the Agreement Price and the cost of any claims paid. If You cancel this Agreement after 30 days from the Effective Date of this Agreement, We will refund to You 90% of a prorated refund of the Agreement Price based on months remaining, in the Agreement, less a cancellation fee of $5O and the cost of any claims paid.

b) Our Right to Cancel and How Refunds Will Be Calculated: We may cancel this Agreement for: (1) Your nonpayment of the Agreement Price or Per Claim Fee when due; (2) Your material breach of any provision of this Agreement; (3) fraud or material misrepresentation of facts by You in relation to obtaining this

Agreement or making a claim under this Agreement and; (4) threatened or actual harm by You to Zucora, its Employees, Representatives, or Service Contractors, or any property of Zucora or Service Contractors. If We cancel this Agreement, We will refund to You a prorated refund of the Agreement Price based on months remaining in the Agreement Term, less any claims paid. If We cancel this Agreement, We will send You written notice stating the reason for and the effective date of cancellation to Your last known address in Our records.

I5. Currency. All dollar amounts provided in the Terms and Conditions of this Agreement are in Canadian Dollars.

I6. Mandatory Arbitration. You and We, agree in good faith, to resolve any controversy or dispute arising out of or relating to this Agreement through direct discussions. Should these discussions be unsuccessful, then any dispute that arises between You and Us relating to the application, interpretation, implementation or validity of this agreement, then You and We agree to resolve the dispute by arbitration using the Canadian Arbitration Association Expedited Arbitration Rules. The parties agree that the Canadian Arbitration Association Expedited Arbitration Rules give the parties a fair opportunity to present their case and respond to the case of the other side. The arbitration shall be held in London, Ontario and shall proceed in accordance with the provisions of the Arbitration Act of Ontario, 1991. Judgement upon the award rendered by the arbitrator may be entered in any court having jurisdiction.

I5. Privacy Notice. You agree that all information provided by You will be used by Us or our service providers in accordance with Our privacy policy and that We may verify Your identity using security questions. You declare and warrant that You are providing Us with accurate information and have all necessary rights to submit any information provided in the course of receiving the services provided by Us and that any submitted information or materials do not infringe the rights of third parties. Note that if You withdraw Your consent to certain uses of Your personal information, We may no longer be able to provide services under this Agreement. You are responsible for ensuring that We accurate information on file, including but not limited to Your mailing address, service address, email address and phone number. Zucora expressly disclaims any and all responsibility and liability for providing any services under this Agreement if the information on file is not accurate.

I6. Contacting Us. Please contact us at:

SmarterLiving
Administered by: Zucora Inc.
552 Clarke Road, London, ON N5V 3K5
Toll-Free: 1.866.667.6695

Website: www.mysmarterliving.com
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